

Supreme Court Act, 1991

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Supreme Court Act, 2048 (1992)

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Amending Acts

1. Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2010) 2066.10.07
2. Certain Nepal Acts Amendment Act, 2072 (2016) 2072.11.13
3. Supreme Court (First Amendment) Act, 2073 (2016) 2073.5.27
4. Judicial Administration Act, 2073 (2016) 2073.5.27
5. Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074 (2017) 2074.6.30

Act No. 29 of the year 2048 (1992)

An Act Made to Make Provisions Relating to the Supreme Court

Preamble: Whereas it is expedient to make some legal provisions relating to the Supreme Court,

Be it enacted by Parliament in the twentieth year of the reign of His Majesty Maharajadhiraj Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be cited as the "Supreme Court Act, 2048 (1992)".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

Amended by Certain Nepal Acts Amendment Act, 2072 (2016).(a) "Constitution" means the Constitution of Nepal.

(b) "Chief Justice" means the Chief Justice of Nepal, and said term also includes the Acting Chief Justice. Amended by Certain Nepal Acts Amendment Act, 2072 (2016).(c) "Judge" means a Judge of the Supreme Court, and said term also includes the Chief Justice.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Seat of Supreme Court: The Supreme Court shall be located in Kathmandu. Provided that, Amended by Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2010).the Supreme Court may also hold a bench at a place designated by the Chief Justice in consultation with the Government of Nepal and exercise its jurisdiction or perform other functions. 4. Exercise of Jurisdiction of Supreme Court: (1) The power to hear and decide cases from the Supreme Court shall be exercised Added by Certain Nepal Acts Amendment Act, 2072 (2016).by the Constitutional Bench, a bench of a single Judge as prescribed, or by a

Amended by the First Amendment. Joint Bench, Full Bench, or Larger Full Bench of more than one Judge, and by the Constitutional Bench.

(2) Except as described in sub-section (1), the exercise of other powers vested in the Supreme Court shall be carried out by the full meeting of the Judges of the Supreme Court, by a committee, or by the Amended by the First Amendment. Chief Registrar of the Supreme Court, as prescribed. Added by the First Amendment. 4A.

Power to Issue Orders: The Supreme Court may issue an appropriate order when declaring any law void or invalid ab initio or from the date of the decision pursuant to Article 133, sub-article (1) of the Constitution. Added by the First Amendment. 4B. Power to Form Committee or Task Force: The full meeting of the Judges of the Supreme Court or the Chief Justice may, as necessary, form a committee or task force for work other than the work referred to in section 4, and prescribe the functions, duties, and procedures of such committee or task force. 5. Repealed by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074 (2017) Added by the First Amendment. 5A. Supreme Court to Remain as a Court of Record: The Supreme Court shall be a court of record. The judgments, final orders, and documents relating to prescribed judicial proceedings of the Supreme Court shall be preserved permanently as prescribed. 6. Repealed by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2010) 7. Repealed by the Judicial Administration Act, 2073 (2016) 8. Oath: A person appointed to the office of Chief Justice shall take an oath Amended by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2010). before the President, and a person appointed to the office of Judge shall take an oath before the Chief Justice, as prescribed in the Schedule. Amended by the First Amendment. 9. Chief Registrar: (1) There shall be one Chief Registrar in the Supreme Court. (2) The Chief Registrar shall work as the administrative head of the Supreme Court under the general direction and control of the Chief Justice. (3) The functions, duties, and powers of the Chief Registrar shall be as prescribed. (4) The Chief Registrar may, as necessary, delegate some of the powers vested in him to any Registrar or subordinate officer or employee. 10. Repealed by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2010) 11. Power to Make Rules: (1) The Supreme Court may make necessary rules to regulate the exercise of its jurisdiction and its procedure. (2) Without prejudice to the generality of the power conferred by sub-section (1), rules may be made in respect of the following matters:- Omitted by the First Amendment.

Amended by the First Amendment. (a) Matters relating to the exercise of the jurisdiction of the Supreme Court by a bench of a single Judge or by a Joint Bench, Full Bench, Larger Full Bench, or Constitutional Bench of more than one Judge. (b) Matters relating to petitions for appeal, revision, review, and retrial of cases filed in the Supreme Court. (c) Amended by Certain Nepal Acts Amendment Act, 2072 (2016). Matters relating to petitions falling under Article 133, sub-articles (1) and (2) of the Constitution. (d) Matters relating to keeping in custody or imprisonment or releasing on bail or security of a person filing an appeal in the Supreme Court against a judgment of conviction rendered by a lower court in criminal cases. (e) Procedure relating to Contempt of Court. Amended by the First Amendment. (f) Other matters relating to the administrative work and judicial procedure of the Court. 12. Repeal: The Supreme Court Act, 2019 (1963) is hereby repealed. Amended by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 (2010). Schedule (Relating to Section 8) Oath I, do solemnly affirm / swear in the name of God that, remaining fully loyal to the Nepalese people, the prevailing Constitution, and other laws, I will faithfully discharge the responsibilities of the office of that I have assumed, without being influenced by anyone's fear, favor, prejudice, malice, or greed, and in a manner not contrary to the integrity and dignity of the judiciary; and I will not disclose any matter that comes to my knowledge in the course of performing my duty, except in compliance with the

prevailing law, whether I continue in office or not. Date : Signature